

tor's son to have "the use and enjoyment" of a house, and were "empowered" during the son's "occupation," [*576] to make "repairs" * and Lord Romilly, M. R., held that the trustees were to keep the house in a *habitable* state, but not to make *ornamental* repairs (*a*). Where a mansion house was dilapidated at the date of the testator's will, and he empowered his trustees "to keep all the buildings in good *repair*, and to make such improvements by draining, walling, *building*, liming, or manuring, as they should think proper," the trustees had no power to *rebuild* the mansion house (*b*). But under a power to "improve the estate by erecting farm-houses and out-buildings, or by draining and planting," it was held that the trustees could erect agricultural cottages (*c*). And where the trustees of a term of 1000 years were specially authorised to keep the premises in good repair and "*generally to superintend the management*" of the estate, the Court held that the latter words conferred a general power without limit, that is, according to the discretion of the trustees, and allowed the sums expended by them in erecting and repairing farm-houses and buildings, in draining, fencing, sinking wells, putting up pumps, constructing a bridge, and forming, repairing, and altering roads (*d*). If trustees, without any special power to authorise it, lay out money in improving the estate (as in building a villa upon ground intended to be building ground, and which object they are advised will be promoted by the erection of the villa), they cannot justify the expenditure, but on the other hand, the *cestuis que trust* cannot take the benefit and repudiate the whole outlay, but the trustees will be liable only for the loss to the estate (*e*). [And where the mansion house had been burnt down and the trustee applied a large sum, in addition to the insurance monies, in restoring the mansion house, the Court was of opinion that it had no jurisdiction to order a sale or mort-

Geary, 3 Mer. 513; Gilliland v. Crawford, 4 I. R. Eq. 35.

(*a*) Maclaren v. Stainton, M. R. March 14, 1866, MS.

(*b*) Bleazard v. Whalley, 2 Eq. Rep. 1093; see *ante*, p. 537.

(*c*) Lord Rivers v. Fox, 2 Eq. Rep. 776.

(*d*) Bowes v. Earl of Strathmore, 8 Jur. 92.

(*e*) Vyse v. Foster, 8 L. R. Ch. App. 309, affirmed 7 L. R. H. L. 318.